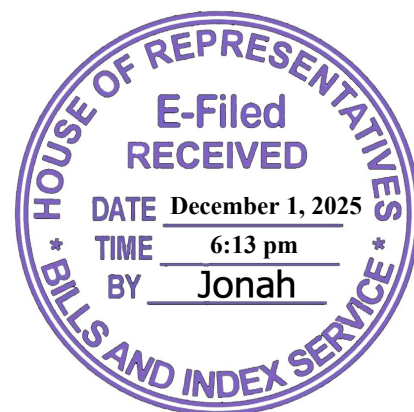


Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

TWENTIETH CONGRESS
First Regular Session

House Bill No. 6539



Introduced by **HONORABLE RAMON JOLO B. REVILLA III**

AN ACT
DEFINING AND PROHIBITING MALICIOUS USE OF DEEPPFAKE
TECHNOLOGY AND PROVIDING PENALTIES THEREOF AND FOR
OTHER PURPOSES

EXPLANATORY NOTE

This proposed legislative measure seeks to create a special penal law that shall define deepfake technology and its unlawful use which blatantly exploits the consent, privacy, and safety of individuals, including those of women and children, using artificial intelligence (AI) learning software. In example, an unscrupulous individual may take an image of a real person and impersonate their likeness appear in images or videos. These AI-generated materials, thereafter, are bound to the sole discretion of the creator to perform visual acts that may include violations of laws.

As generative artificial intelligence tools become more advanced and sophisticated, the advancing technology has given rise to a growing issue that primarily impacts society. In recent, a deepfake video of a business tycoon in our country propagated in social media supposedly persuading the public in investment opportunities that guaranteed income of \$1,000.00 or P175,000.00

weekly.¹ The deceitful act of the creator can easily convince the public through the use of deepfake technology, and fraudulently obtain their hard-earned money.

Moreover, women and girls particularly, are susceptible in deepfake attacks through the creation of nonconsensual intimate imageries, also known as “deepfake pornography.” Deepfake videos started in 2017, when a single Reddit user named “deepfakes”, used a machine-learning algorithm to swap female celebrities’ faces onto pornography actresses’ bodies.² The process, thereafter, streamlined with the creation of “nudify” apps, which allowed users to use photographs of real women and instantly undress them and create fake nude images.

A study conducted in 2019, found that almost 96% of online deepfake videos were pornographic and nonconsensual.³ Moreover, 99% of individuals targeted in deepfake pornography are women which correlatively translates it as a gender-based violence.⁴ Women are more likely to be the victims of these attacks, especially those belonging in the entertainment industry and those in government service. There have been several instances over the past few years where Filipinas have been victims of deepfake pornography.⁵ Consequently, a public incident revealed that minors were also vulnerable by such attacks.⁶

¹ GMA News. Ramon Ang warns public against deepfake investment scam. Information retrieved from <https://www.gmanetwork.com/news/money/companies/936483/ramon-ang-warns-public-against-deepfake-investment-scam/story/>. Dated 17 February 2025

² Institute of Global Politics. Journalist Emanuel Maiberg Addresses AI and the Rise of Deepfake Pornography. Information retrieved from <https://igp.sipa.columbia.edu/news/rise-deepfake-pornography>. Dated 22 April 2024

³ PBS News. Women face new sexual harassment with deepfake pornography. Information retrieved from <https://www.pbs.org/newshour/show/women-face-new-sexual-harassment-with-deepfake-pornography>. Dated 27 June 2023

⁴ Ibid.

⁵ ABS-CBN. Actress Angel Aquino calls for stronger laws after falling victim to deepfake. Information retrieved from <https://www.abs-cbn.com/news/technology/2025/9/4/actress-angel-aquino-calls-for-stronger-laws-after-falling-victim-to-deepfake-1718>. Dated 4 September 2025

⁶ Daily Tribune. Content creator’s daughter falls victim to deepfake. Information retrieved from <https://tribune.net.ph/2025/09/04/content-creators-daughter-falls-victim-to-deepfake>. Dated 4 September 2025

Since AI is a relatively new technological phenomenon, its legal purview in certain spheres remain limited and has not been thoroughly analyzed nor legislated.

In view of the foregoing, the immediate passage of this measure is earnestly sought.



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Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Short Title.* – This Act shall be known as the “Anti-Deepfake Abuse and Digital Integrity Act”.

SEC. 2. *Declaration of Policy.* – It is hereby declared the policy of the State to recognize the dignity of every human person and guarantees full respect for human rights enshrined in the Constitution and the commitment to adhere with the United Nations Universal Declaration of Human Rights. It shall affirm the protection of the family and its members, including women and children from the exploitation of artificial intelligence technology that infringe their consent, privacy, and safety.

Towards this end, the State shall prohibit the unlawful use of deepfake technology thereby criminalizing such actions that involve the creation, publication, and sharing of any form of generative artificial intelligence technology that induce the deception, sexualization, or harassment of a person.

SEC. 3. Definition of Terms. – As used in this Act:

- (a) **APPLICATION** refers to any computer program based on software or the web designed for task interface that any user can access on their local computers or other devices through the internet;
- (b) **CHILD** refers to a person below eighteen (18) years of age or those over but are unable to fully take care of themselves or protect themselves from abuse, neglect, cruelty, exploitation, or discrimination due to a physical or mental disability or condition;
- (c) **COMPUTER** refers to an electronic, magnetic, optical, electrochemical, or other data processing or communications device, or grouping of such device, capable of performing logical, arithmetic, routing, or storage functions and which includes any storage facility or equipment, or communications facility or equipment directly related to or operating in conjunction with such device. It covers any type of computer device including devices with data processing capabilities like mobile phones, smart phones, computer networks and other devices connected to the internet;
- (d) **DEEFAKE TECHNOLOGY** refers to a subset of artificial intelligence-machine learning (AI/ML) which uses any deep learning algorithm or method in advanced computer technology such as, but not limited to, a generative adversarial network (GAN) to create a synthetic media, image, video, or audio, that are either partially or wholly, of an individual falsely appearing to a reasonable person, either in good faith or in malice, to be authentic of the actual speech, appearance, action,

voice, conduct, demeanor, or visualization of the individual depicted in a recording material;

(e) ***DIGITAL PLATFORM*** refers to any computer application or service that provides digital content and service on the internet which uses algorithm to prioritize content and set policies to determine content allowed on the platform;

(f) ***DIGITAL MARK*** refers to embedded information which includes, but not limited, to identifiers, logos, or patterns into digital content through computer software or modifications;

(g) ***DEPICTED INDIVIDUAL*** refers to the person whose likeness has been reproduced or simulated;

(h) ***IMPERSONATE*** refers to act the part of, assume the identity of, or display the personal identification or physical likeness of a particular person with purpose to make another person believe that the actor, whether a natural person or computer-generated, is that particular person;

(i) ***INTERNET*** refers to the combination of computer facilities and electromagnetic transmission media, and related equipment and software, comprising the interconnected worldwide network of computer networks that employ the Transmission Control Protocol (TCP) or any successor protocol to transmit information;

(j) ***INTERNET SERVICE PROVIDER (ISP)*** refers to a public telecommunication entity (PTE) or value-added service (VAS) provider

duly authorized by or registered with the National Telecommunications Commission (NTC) that provide users or other entities with data connection allowing access to the internet through physical transport infrastructure, and such access is necessary for internet users to access content and services on the internet, and for content providers to publish or distribute materials online;

(k) **LASCIVIOUS CONDUCT** refers to any act with the intent to arouse or satisfy sexual desire, such as but not limited to, kissing, smacking, smooching of or by another person. It shall also include the physical act of groping, rubbing or illegally touching another person's private parts;

(l) **NUDITY** refers to the showing of the human male or female genitals, female breast area, pubic area, or buttocks with less than fully opaque clothes or covering;

(m) **PERSON** refers to any natural or juridical entity;

(n) **PUBLISH** refers to the act of making information or material available to the public such as, but not limited to, posting online, broadcasting, or making content accessible in any form to the general public;

(o) **SEXUAL ACTIVITY** refers to the following acts, whether performed or simulated:

(1) Sexual intercourse or lascivious act including contact involving the genitalia, oral stimulation of the genitals, or oral stimulation of the anus, whether between persons of the same or opposite sex;

(2) Masturbation;

(3) Sadistic or masochistic abuse;

(4) Lascivious exhibition and stimulation of the genitals, buttocks, breasts, pubic area or anus;

(5) Bestiality;

(6) Use of any object or instrument for lascivious act; or

(7) Any other analogous circumstance.

- (p) ***SOCIAL MEDIA*** refers to any website or internet medium that permits any person to become a registered user, establish an account, or create a profile for the purpose of allowing other users to create, share, and view user-generated content through such an account or profile that can be view by other users of the medium.

SEC. 4. *Unlawful Use of Deepfake Technology* – Notwithstanding the offenses provided by Republic Act No. 10175, otherwise known as the “Cybercrime Prevention Act of 2012,” and other existing laws, the following acts shall constitute as criminal offenses on the unlawful use of deepfake technology:

- (A) ***General Use*** – Any person who shall create a deepfake material that falsely depict an individual or group of people performing any speech or action, or cause its publication, knowing such material is a deepfake, on the internet, social media, digital platform or any online application.

(B) ***For Gain*** – Any person who shall prepare, create, or facilitate such a deepfake material, without the consent of the depicted individual, by exhibiting to, distributing to, selling to, or exchanging with the intent to gain, profit, or defraud another.

(C) ***For Blackmail*** – Any person who shall prepare, create or facilitate such a deepfake material, without the consent of the depicted individual, to cause the demand of payment or another benefit in return for not revealing, compromising, or to disseminate damaging information about the depicted individual.

(D) ***Sexual and Lascivious Content*** –

(1) ***Creation and Distribution*** – Any person who shall create, publish, or wilfully share such a deepfake material, without the consent of the depicted individual and cause the publication thereof on the internet, social media, digital platform or any online application, that impersonate and falsely show the depicted individual engaging in any lascivious conduct, sexual activity, or in a state of nudity.

SEC. 5. *Law Enforcement Authorities.* – To ensure the efficient and effective enforcement of this Act, the National Bureau of Investigation (NBI) and the Philippine National Police Anti-Cybercrime Group (PNP-ACG) shall institute programs, measures, and establish a specialized unit in their respective anti-cybercrime units, if applicable, to handle cases involving violations prescribed in this Act.

SEC. 6. *Jurisdiction and Venue.* – The Regional Trial Court (RTC) shall have original and exclusive jurisdiction over any violation of the provisions of

this Act. *Further*, That the necessary action shall be filed in the court where the complainant resides. *Further provided*, That in the absence of such court in the place where the complainant resides, the case shall be filed in the Regional Trial Court where the crime or any of its elements was committed at the option of the complainant.

SEC. 7. *Website Blocking*. – All Internet Service Providers (ISPs) shall install available technology, program, or software that will block internet access or filter all websites relating to the creation and use of unlawful deepfake materials as provided in this Act. The National Telecommunications Commission (NTC) shall identify and furnish the list of unlawful deepfake websites or applications to the ISPs for immediate blocking of access or filtering. *Further*, That the ISPs shall be free from any liability arising from its compliance with any order of the NTC for the immediate blocking of access or filtering of any such websites.

Further provided, That host websites, social media platforms, content-hosting services, and other online intermediaries, upon proper notification and verification from any complainant or competent government authorities, shall exercise due diligence in detecting, removing, or disabling access of deepfakes as defined in this Act.

SEC. 8. *Mandatory Digital Watermark on Digital Content Using Deepfake Technology*. – All deepfake content shall bear an identifiable and traceable digital mark of its creator indicating that it is AI-Generated and is deepfake content. Further, such digital mark shall be visible to the naked eye and placed in a conspicuous location that the audience can easily identify.

SEC. 9. *Mandatory Takedown and Removal Mechanism.* – The Department of Information and Communications Technology (DICT), upon verification of a complaint filed by any party against any provisions of this Act, shall immediately contact and notify the respective ISP or respective host website or online platform and issue a takedown request within twenty-four (24) hours. *Further*, That the respective host website or online platform shall prevent the re-uploading of such deepfake content that has been identified and removed.

SEC. 10. *Exemptions.* – No person shall be found criminally liable for acts constituting the unlawful use of deepfake technology under the following circumstances:

- (a) Subject to other existing laws, the depicted individual provided consent and was knowingly aware of the creation and distribution of his or her deepfake material in the internet, social media, digital platform or any online application; and
- (b) The depicted individual provided consent and was knowingly aware of the creation of a deepfake material that serves artistic purpose, such as but not limited to film-making, parody, satire, or commentary.

SEC. 11. *Penalty Clause.* – The following penalties shall be imposed on the following offenses:

- (a) Any person who violates Section 4 (A) or Section 4 (B) of this Act shall suffer the penalty of six (6) years to twelve (12) years of imprisonment and a fine ranging from One hundred thousand pesos (P100,000.00) to Three hundred thousand pesos (P300,000.00), or both at the discretion of the court;

- (b) Any person who violates Section 4 (C) or Section 4 (D)(1) of this Act shall suffer the penalty of twelve (12) years to twenty (20) years of imprisonment and a fine ranging from Three hundred thousand pesos (P300,000.00) to Five hundred thousand pesos (P500,000.00), or both at the discretion of the court;
- (c) Any juridical person, without prejudice to other civil or criminal liabilities, who fail to comply with Section 7 or Section 9 of this Act shall suffer the penalty of six (6) to twelve (12) years of imprisonment and a fine ranging from Five hundred thousand pesos (P500,000.00) to One million pesos (P1,000,000.00), or both at the discretion of the court; and
- (d) Any person who violates Section 8 of this Act shall suffer the penalty of three (3) years to six (6) years of imprisonment and a fine ranging from One hundred thousand pesos (P100,000.00) to Three hundred thousand pesos (P300,000.00), or both at the discretion of the court.

SEC. 12. *Juridical Liability.* – If the offender is a juridical entity, the penalty shall be imposed upon the owner, manager, partner, member of the board of directors, and/or any responsible officer of an enterprise who participated in the commission of the crime or shall have knowingly permitted or failed to prevent its commission. *Further*, its respective license or permit to operate may be revoked.

SEC. 13. *Implementing Rules and Regulations.* – Within ninety (90) days from the effectivity of this Act, the DOJ, in consultation with the Department of Information and Communications Technology (DICT), NBI, and PNP-ACG, and

other stakeholders shall promulgate the necessary rules and regulations for the implementation of this Act.

SEC. 14. *Limited Applicability of the Revised Penal Code.* – Notwithstanding any law, rule or regulation to the contrary, the provisions of the Revised Penal Code, as amended, shall not apply to the provisions of this Act, except in the case of child offenders. Where the offender is a child, the penalty for acts punishable by twenty (20) years to forty (40) years shall be *reclusion perpetua*.

SEC.15. *Separability Clause.* – If any provision of this Act is held invalid or unconstitutional, the other provision hereof shall remain in full force and effect.

SEC. 16. *Repealing Clause.* – All laws, decrees, executive orders, rules and regulations, or parts thereof inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

SEC. 17. *Effectivity Clause.* – This Act shall take effect fifteen (15) days from its publication in the Official Gazette or in a newspaper of general circulation.

Approved,